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SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil Division

Central District, Stanley Mosk Courthouse, Department 311

Tentative Ruling

25STCV10546

PEDRO SANTIAGO ORTIZ vs GENERAL MOTORS LLC, A DELAWARE LIMITED LIABILITY COMPANY

July 21, 2026

8:30 AM

NATURE OF PROCEEDINGS: Defendant General Motors LLC's Motion for Summary Judgment or, in the Alternative, Summary Adjudication

RULING:

The Court denies the Motion for Summary Judgment and Alternative Motion for Summary Adjudication of Issues.

As for Defendant's Objections, filed July 10, 2026, to the Declaration of Plaintiff, the Court sustains objection number 11, and otherwise overrules those objections. (See *Lockhart v. MVM, Inc.* (2009) 175 Cal.App.4th 1452, 1457 ["mere expression of opinion" is "insufficient to raise triable issue of fact."].)

Regarding Plaintiff's Evidentiary Objections, filed July 1, 2026, in Support of Opposition, the Court overrules those entirely. (See *Luckman Partnership, Inc. v. Superior Court* (2010) 184 Cal.App.4th 30, 34-35 [counsel properly authenticated interrogatory responses by declaring personal knowledge that the documents were the party's responses]; *Wall Street*

Network, Ltd. v. N. Y. Times Co. (2008) 164 Cal.App.4th 1171, 1183 ["declaration establishes that her personal knowledge of the litigation rendered her competent to testify that respondents had obtained the materials ... through discovery."]; Barnick v. Longs Drug Stores, Inc. (1988) 203 Cal.App.3d 377, 380, fn. 3 [attorney's declaration sufficient to authenticate the answers received to interrogatories].)

Plaintiff to give notice.

I. BACKGROUND

On April 9, 2025, PEDRO SANTIAGO ORTIZ (Plaintiff) filed a Lemon Law Complaint against GENERAL MOTORS LLC (Defendant), alleging Causes of Action under the Song-Beverly Consumer Warranty Act (Civ. Code §§ 1790-1795.8), along with a Cause of Action for Violation of the Magnuson-Moss Warranty Act.

Plaintiff alleges purchasing, with warranty provisions, a 2022 GMC Sierra that Defendant manufactured, which had defects, including engine & transmission. Plaintiff further alleges that Defendant failed to repair the vehicle within a reasonable number of attempts and did not promptly replace it or make restitution.

On April 30, 2026, Defendant filed the Motion for Summary Judgment or Summary Adjudication of the following issues:

- ISSUE NO. 1: Plaintiff cannot create a triable issue of material fact as to his First Cause of Action against GM because he cannot establish a breach of any express warranty under the Song-Beverly Act as he has not provided GM – or its authorized repair and service facilities – with a reasonable number of opportunities to repair the vehicle under the warranty.
- ISSUE NO. 2: Plaintiff cannot create a triable issue of material fact as to his Second Cause of Action against GM because he cannot establish that GM – or its authorized repair and service facilities – failed to repair the vehicle within a reasonable time.
- ISSUE NO. 3: Plaintiff cannot create a triable issue of material fact as to his Third Cause of Action against GM because he cannot establish that GM failed to provide its authorized repair and service facilities sufficient parts or literature to effect repairs within the warranty period.
- ISSUE NO. 4: Plaintiff cannot create a triable issue of material fact as to his Fourth Cause of Action against GM because he cannot establish that GM breached any implied warranty under the Song-Beverly Act as the subject vehicle was merchantable.
- ISSUE NO. 5: Plaintiff cannot create a triable issue of material fact as to his Fifth Cause of Action against GM for violation of the Magnuson-Moss Act because that claim has no merit for the same reasons his Song-Beverly Act claims have no merit and for Plaintiff's failure to comply with required informal-dispute-resolution procedures.

(Notice, pp. 2-3.)

Plaintiff opposes, emphasizing that, considering all repair opportunities as to nonconformities of warranty, the Court should determine that there are triable issues of material fact. Additionally, Plaintiff disagrees with some points of law, to wit (1) attempted or isolated repairs are the statutory test, (2) repairs are required for implied warranties, or (3) pursuing manufacturer remedies are required under the Magnuson-Moss Warranty Act.

II. LEGAL STANDARD

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.)

Once a moving party has satisfied the initial burden of proof, the burden “shifts to the opposing party to show, by responsive separate statement and admissible evidence, that triable issues of fact exist.” (*Ostayan v. Serrano Reconveyance Co.* (2000) 77 Cal.App.4th 1411, 1418, disapproved on other grounds by *Black Sky Cap., LLC v. Cobb* (2019) 7 Cal.5th 156, 165.)

III. ANALYSIS

Defendant emphasizes that, by generally referencing the entire repair history, Plaintiff cannot show a reasonable number of attempts to repair where the focus of the analysis is the same non-conformity to warranty (citing *Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App. 4th 785, 799.)

Plaintiff disagrees based upon law that isolated repairs and attempts are not dispositive of the issue of a reasonable opportunity to repair. Also, Plaintiff identifies multiple repairs. (E.g., Opposition, 1:15-2:6, 3:6-28.) As for the Implied Warranty Claim, Plaintiff references law that attempts to repair are not any requirement. And regarding the Magnuson-Moss Cause of Action, Plaintiff references law and proof that an informal dispute settlement mechanism is not required. (Opposition, 18:22-19:9.)

“The submission of evidence which is equivocal or from which conflicting inferences may be drawn is insufficient to meet the movant’s burden.” (*Anderson v. Metalclad Insulation Corp.* (1999) 72 Cal.App.4th 284, 297.) Moving parties’ own evidence, revealing triable issues of material fact, may support denial of a motion for summary judgment. (*Simmons v. Cal. Coastal Complaint* (1981) 124 Cal.App.3d 790, 797 [“the presence of conflicting inferences must be taken into account in testing both whether a prima facie case to support a judgment has been made and whether any issues of fact are presented for resolution as a result of opposition filings.”]; *Sesma v. Cueto* (1982) 129 Cal.App.3d 108, 114 [moving party’s own records revealed contrary inferences]; *Fisher v. Gibson* (2001) 90 Cal.App.4th 275, 286 [“A party opposing summary judgment may be able to demonstrate the existence of a triable issue of material fact through the moving party’s own evidence”].) In deciding whether there are any triable issues, courts consider reasonably deducible inferences from the evidence. (*Sababin v. Superior Court* (2006) 144 Cal.App.4th 81, 90.)

Under the Song-Beverly Warranty Act, beyond just repairing isolated defects, manufacturers are required to adequately “ ‘service or repair the goods to conform to the applicable express warranties,’...” (*Phillips v. Volvo Penta of the Americas, LLC* (2026) 120 Cal.App.5th 1173, __, __ [“was obliged ... to service and repair to conform to ‘the applicable express warranties,’...”].) “[T]he only affirmative step the Act imposes on consumers is to ‘permit[] the manufacturer a reasonable opportunity to repair the vehicle.’.... Whether or not the manufacturer’s agents choose to take advantage of the opportunity, or are unable despite that opportunity to isolate and make an effort to repair the problem, are matters for which the consumer is not responsible.” (*Oregel v. Am. Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1103–1104.)

Implied warranties are not associated with a requirement of a reasonable number of repairs. “[W]hile under a manufacturer’s express warranty the buyer must allow for a reasonable number of repair attempts within 30 days before seeking rescission..., that is not the case for the implied warranty of merchantability’s bulwark against fundamental defects.” (*Brand v. Hyundai Motor Am.* (2014) 226 Cal.App.4th 1538, 1545.)

Under the Song-Beverly Warranty Act, an applicable element of implied warranty is that the vehicle was not suitable for Plaintiff’s particular purpose. (CACI 3211; Civ. Code § 1791.1 et seq.)

A warranty claim could be stated under Magnuson-Moss Warranty Act, if a California claim also could be stated. (*Daugherty v. Am. Honda Motor Co.* (2006) 144 Cal.App.4th 824, 833.) Potential remedies under the Magnuson-Moss Warranty Act may apply even where the Song-Beverly Act does not. (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 205–206 [quoting

Rodriguez v. FCA US, LLC (2022) 77 Cal.App.5th 209, 225].) A Court of Appeal reversed a trial judge's ruling denying leave to amend, where remedies were unavailable under the Song–Beverly Consumer Warranty Act, but the plaintiff had a viable cause of action under Magnuson–Moss Act. (See Dagher v. Ford Motor Co. (2015) 238 Cal.App.4th 905, 929.)

Here, in response to a somewhat equivocal vehicle history report and repair orders lacking in detail and partly inconclusive as to whether mechanical issues existed or completely repaired, Plaintiff's declaration supports factual disputes, including reasonable inferences, that repairs of white exhaust smoke and glow plugs involved existent, ongoing, interrelated, and broader nonconformities, which were not fully repaired timely or in only one attempt, and the vehicle was sold in an unmerchantable condition unsuitable for Plaintiff's use. (Plaintiff's Declaration, filed 7/1/26, ¶¶ 3-12 and 14.)

IV. CONCLUSION

Accordingly, the Court denies the Motion and Alternative Motion, for reasons set forth above.